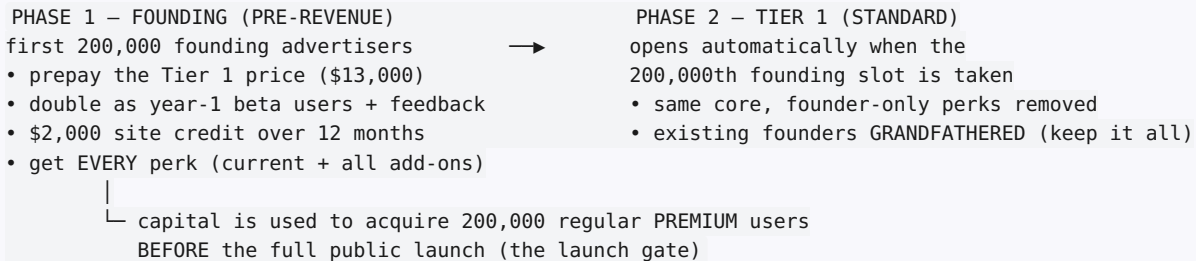


Founding (Pre-Revenue) Offer → Tier 1 — Design Spec

A two-phase advertiser offer: a capped **Founding / Pre-Revenue** offer that funds the launch, then a standard **Tier 1** offer that takes over once the founding cap fills. Planning/discussion doc — nothing is coded yet. Not legal advice; the disclosure points below are for counsel.

The model in one picture



Phase 1 — The Founding / Pre-Revenue Offer

- **Cap: the first 200,000 founding advertisers** (a hard slot cap, independent of user count).
- **Purpose — pre-revenue capital.** Founders prepay the Tier 1 price up front; that capital is used to **acquire at least 200,000 regular premium users before the full public launch** (the launch gate below).
- **Founders double as year-one users + feedback partners.** They actively use the platform for the first year and provide feedback — framed as a founding-partner *privilege/role*, not a paid obligation.
- **\$2,000 in on-site credit, spent over 12 months** (~\$166.67/month, non-cashable Site Cash) — the firm founding credit (this supersedes the old “up to \$2,000 gift boost, subject to availability” wording).

The launch gate

Full public launch does **not** happen until the founding capital has acquired **≥ 200,000 regular premium users**. Until then, founder advertising delivers **capacity-paced** (as the audience grows) and is backed by the delivery guarantee — no fixed year-one volume is promised, and any shortfall is made good over time.

Payment & the guarantee (decision: option (b))

- **200,000 is an aspirational headline ceiling**, and the guarantee is **purely capacity-paced with NO fixed timeline**: “your advertising delivers as our audience grows, and we keep delivering — free — until you’ve received the full amount you were promised.”
- **One payment, nothing more until you’re made whole.** A founder pays the \$13,000 **once, up front**, and **owes no additional dollar** — no renewal, no top-up — **until their full guaranteed advertising has been delivered**. We keep serving it (make-good, no time cap) until met. This is already how the deliver-until-met guarantee works; the founding offer states it explicitly.

Founding perks — EVERYTHING (current stack + all add-ons)

Already in the app (keep all): 1. 200,000 ad impressions / year, on a 4-year term 2. 100,000 launch-bonus impressions (one-time) 3. Premier featured placement + a spot on the sponsors wall 4. Free AI-written ad creative (ongoing refresh) 5. Always-on AI campaign manager + optimization 6. ~30 AI social ad posts / month (clearly labeled) 7. A/B testing, real-time analytics & attribution, consumer-sentiment insights 8. Priority concierge support 9. Premium membership included 10. **\$2,000 site credit over 12 months** (non-cashable) 11. Full-Value Delivery Guarantee (make-good, deliver-until-met) 12. 30-day proportional cancellation (keep 2/3, refund 1/3) 13. Value stack: \$13,000 → ~\$26,000 in advertising value (2×), backed by guaranteed value-match impressions

Added (all of the “could-add” list): 14. **Founding price locked forever** — the \$13,000 rate never rises for as long as they stay 15. **“Founding Partner” verified badge** + a permanent spot on a public Founding Partners wall 16. **Category exclusivity / first right of refusal** during the founding window 17. **Audience-growth dividend** — impression allotment grows automatically as the user base grows 18. **Grandfathering** — keep the entire founding perk stack permanently, even after Tier 1 takes over 19. **Founder referral bonus** — refer another advertiser, earn bonus impressions / account credit 20. **Dedicated onboarding + quarterly strategy session** (AI campaign manager, human

escalation) 21. **Roadmap input / founder advisory** + first beta access to every new ad surface & AI tool 22. **Co-marketing** — launch PR, “founding partners” announcements, case studies 23. **Keep 100% of your own survey earnings — for life** (as Site Cash; supersedes the 100%→75% revert) 24. **Annual free creative refresh / seasonal campaign packs** 25. **Better make-good / extended cancellation terms** than standard Tier 1 26. **Locked-in renewal rate** (kept from the current stack; now framed as the for-life price lock in #14) 27. **Early access** to new surfaces (kept from the current stack; folded into #21)

Max-scale feature entitlement — every feature at Tier 3 / Unlimited, free

On top of the entire add-on catalog above, a founding advertiser (`is_founding`) resolves to the **Tier 3 / Unlimited capability level for every tier-gated feature** — e.g. maximum AI Creative Suite generations, all ad formats, unlimited concurrent experiments, multivariate testing, the full autonomy ceiling, predictive learning, and image / video / brand-kit / localization / auto-refresh. This is the **most scaled-up version of every feature, at no extra cost**, gated by `FOUNDING_MAX_SCALE_ENABLED` (default ON).

Capability, not volume — state this accurately. This maxes feature **capability**, not delivered ad-impression **volume**: the founding impression allotment (#1, #2, #17) is unchanged and still governed by the capacity-paced, deliver-until-met guarantee. No revenue/ROI promise attaches — it is additional **advertising value delivered** (capability access), never a return.

Phase 2 — Tier 1 (takes over when the 200,000th slot fills)

Same compliant core, founder-only perks removed so the founding deal stays clearly the best.

Tier 1 keeps: 200,000 impressions/yr + 4-year term · value stack (\$13,000 → ~\$26,000) · Full-Value Delivery Guarantee · AI creative + AI campaign manager · analytics / A-B / sentiment · premium membership · 30-day cancellation · **AI-powered concierge support (human escalation available)** — kept, not dropped.

Tier 1 drops / reduces vs founding: - **No** 100,000 launch-bonus impressions (founding-only) - Survey earn-share **reverts to the standard 75%** (founders keep 100% for life) — *already built into the code* - **No** for-life Tier 2 discount (standard rate, or a smaller time-limited one) - **No** Founding badge / co-marketing / category exclusivity - Renewal rate **not** locked for life (founders keep the for-life price lock) - Optionally a slightly **higher price** or a **reduced credit**, to keep the founding deal clearly better

(Support: Tier 1 keeps concierge, delivered by AI with human escalation — same model as the AI campaign manager, so it's not sold as a dedicated human hire.)

The handoff (automatic)

When the founding advertiser count hits **200,000**, the `/Apply` page flips the headline from “**Founding Advertiser — Tier 1**” to plain “**Tier 1**,” founding-only perks stop being offered to *new* signups, and **existing founders keep everything they signed up for** (grandfathered). The countdown (“Founding closes at 200,000 partners — N slots left”) becomes a real marketing hook.

⚠ Reality check — the 200,000-advertiser cap vs deliverable inventory

This is the one part of the plan I have to push back on, because it's the exact oversell problem the inventory governor guards against:

- 200,000 founders × 200,000 guaranteed impressions/yr = **40,000,000,000 (40 billion) impressions promised per year.**
- 200,000 premium users × ~8 impressions/active day × 365 ≈ **584,000,000 (584 million) servable per year.**
- That's **~68x oversold**. Even with capacity-paced “deliver until met,” clearing the promised volume at a 200k-user audience would take **~68 years** — far beyond the 4-year term.
- At a 200k-user audience, the inventory can serve roughly **~2,900 advertisers per year** at the full 200k/yr allotment — not 200,000.
- (For scale: a full 200,000 × \$13,000 would be **\$2.6 billion** prepaid — useful as a headline ceiling, but not a realistic near-term signup count.)

Decision: (b) — chosen. Keep “200,000” as an **aspirational headline ceiling**, with the guarantee stated **purely capacity-paced, no fixed timeline** (“your impressions deliver as our audience grows, and we keep delivering — free — until you’ve received the full amount, however long it takes”). This is workable and the governor already enforces it (it never promises a fixed year-one volume it can't serve). The ~68x gap must be **disclosed clearly and conspicuously**

so no founder infers a near-term delivery date — that disclosure is what keeps a capacity-paced, no-timeline promise substantiable. (Options (a) right-size and (c) lower per-founder impressions remain available later if the disclosure feels too heavy.)

The governor already prevents silent overselling (it capacity-paces and never promises a fixed year-one volume it can't serve) — so nothing breaks — but a 200k-advertiser headline sets an expectation the audience can't meet for decades. Worth deciding before this goes in front of advertisers or counsel.

△ On “ROI” — what the guarantee can and cannot say

The plan is to guarantee delivery **“along with their ROI.”** We **cannot** guarantee ROI/return, and this is the one hard line to hold:

- **Guaranteeing an ROI or a return is a performance/financial guarantee** — unmeasurable off-platform (it depends on the advertiser's own offer, margins, and funnel), an **FTC red flag**, a **payment-processor red flag**, and an **unbounded liability** (you'd owe against their sales with no natural cap). It's the single fastest way to get an account shut down or a claim filed.
- **What we CAN guarantee — and it does the same marketing job — is the full ADVERTISING VALUE delivered.** The founder pays \$13,000 and is guaranteed to **receive ~\$26,000 of advertising** (the 2× value stack: impressions, placements, creative, managed service at conventional rates), **delivered capacity-paced until met, with no additional payment until then.** That's a concrete “you get more than you paid for” promise we can actually stand behind and measure on-platform.
- **We can also give them results reporting** — benchmarks and measured outcomes for their campaigns — we just **never guarantee a revenue number.** “Here's what your advertising delivered and how it performed” is fine; “we guarantee you'll make X back” is not.

The compliant translation of “delivery + their ROI”: *“You pay \$13,000 once. You're guaranteed the full ~\$26,000 of advertising you were promised — we keep delivering it until you've received every dollar of it, at no extra charge — and you'll see exactly what it delivered.”* Same emotional payload (more value than you paid, guaranteed), zero return/ROI promise.

Compliance notes (for counsel)

- **Prepayment, not credit.** Founders prepay for advertising services; the capital is unearned revenue recognized as delivery occurs. Using it to acquire users pre-launch is fine **provided** the capacity-paced, deliver-until-met guarantee is disclosed up front (no fixed launch date or year-one volume is promised).
- **\$2,000 site credit** is non-cashable, closed-loop, spendable only on-site over 12 months — never cash.
- **Feedback/beta role** is a founding privilege, not compensation, and the survey earn-share is a share of *whatever they actually earn*, non-guaranteed, paid as Site Cash — never a return on the advertising.
- **No revenue/ROI promise anywhere** — every figure is advertising *value delivered*.
- **Grandfathering + for-life price lock** are pricing benefits (a rate lock), never a promised return.

Decisions locked

- **Founding cap:** 200,000 advertisers as an **aspirational headline ceiling**; guarantee is **capacity-paced, no fixed timeline** (option (b)). ✓
- **Payment:** one \$13,000 prepayment; **no additional dollar owed until the full guaranteed advertising is delivered** (make-good until met). ✓
- **Guarantee wording:** the full **~\$26,000 of advertising value delivered** (2×) until met — **NOT** an ROI or revenue guarantee. Results are *reported/benchmarked*, never guaranteed. ✓
- **Founding perks:** entire current stack **plus** all add-ons (list above); founders keep 100% survey earn-share for life and are grandfathered. ✓
- **Tier 1 takeover:** at the 200,000th slot; reductions per the list; existing founders grandfathered. ✓

Decisions locked (added)

- **Guarantee reframe accepted:** advertising **value delivered (~\$26k / 2×)**, **pay-once-until-met, results reported not guaranteed** — never an ROI/return promise. ✓
- **Post-founding Tier 1 keeps concierge support**, delivered by **AI** (human escalation available). ✓

Built (2026-08-20)

- **Founding cap = 200,000** (`FOUNDING_ADVERTISER_SLOTS`) — aspirational headline; capacity-paced, no timeline.
- **Post-founding Tier 1 = +30%** over founding (`TIER1_PRICE_UPLIFT_OVER_FOUNDING_PCT` = 0.30): \$13,000 → **\$16,900**. Founders keep their founding price (grandfathered). The signup + /Apply price flip automatically when the cap fills.
- **Category exclusivity for every founder** (`FOUNDING_CATEGORY_EXCLUSIVITY` , on): a founder claims a category no other live founder can hold; enforced at signup (`foundingCategoryTaken`).
- **Capacity-paced delivery disclosure** (`FOUNDING_DISCLOSURE_COPY` , built-in default) — recorded in the consent ledger at signup and shown clear-and-conspicuously on /Apply .
- Founding perks surfaced on /Apply (founding price lock, Founding Partner badge, for-life Tier 2 discount, 100%-for-life earn-share, category exclusivity); post-founding Tier 1 drops the founder-only ones and keeps AI concierge support. Tests: 61 pass; build + audit clean.

Built (2026-09-11)

- **Founding max-scale feature entitlement** (`FOUNDING_MAX_SCALE_ENABLED` , default ON): a founding advertiser (`is_founding`) resolves to the **Tier 3 / Unlimited** capability level for every tier-gated feature (maximum AI Creative Suite generations, all ad formats, unlimited concurrent experiments, multivariate testing, full autonomy ceiling, predictive learning, image/video/brand-kit/localization/auto-refresh) — on top of the existing free add-on catalog. **Caps feature capability, not ad-impression volume** (the founding impression allotment is unchanged); no revenue/ROI promise — advertising value delivered only.

Finalized delivery disclosure (2026-08-21)

The built-in `FOUNDING_DISCLOSURE_COPY` default is now the finalized, clear-and-conspicuous copy a founder must see and accept before buying (recorded to the consent ledger; shown on /Apply). It carries four non-negotiable points — override the setting only to tailor for a jurisdiction, and keep all four:

1. **Capacity-paced delivery — no fixed timeline.** Guaranteed by amount, not by date; delivers as the audience grows; no promised delivery date and no promised year-one volume.
2. **Delivered in full, at no extra cost, however long it takes.** Pay once, up front; owe nothing further; we keep delivering free until the full promised amount is received.
3. **What is guaranteed = advertising delivered** (a stated dollar amount of impressions/placements measured on our own surfaces) — **NOT** revenue, sales, sign-ups, ROI, or any business result.
4. **Not an investment** — a purchase of advertising and membership, not a security; no profit or “multiple” promised or implied.

Counsel may further tailor the wording for a buyer’s jurisdiction, but the four points above must survive — the delivery guarantee frames advertising delivered, never ROI.

Use-of-funds intent letter (DRAFT — for counsel to review & tighten; NOT live)

*This section carries a DRAFT of the owner’s use-of-funds commitment so it travels with the offer for counsel to review and tighten. It is **not** published in any member-facing document, /Apply flow, or marketing surface, and must not be used until counsel has (a) chosen between a binding covenant and a non-binding statement of intent, (b) confirmed how it interacts with the funds model (`FOUNDING_FUNDS_MODEL` : presale / escrow / hybrid) and the refund/escrow representations, and (c) finalized the language and the records/evidence standard. Full analysis and confirm-points are in `SESSION-2026-09-05-AUTONOMY-DATA-AND-FOUNDING-TERM-COUNSEL-NOTE.md` (confirm-points 5–6). Two variants:*

Owner’s directed terms (2026-09-05) captured in the drafts below: (1) founding contributions are **non-refundable** and, **once the offer is filled, are the owner’s to use at discretion** (this **reverses** an earlier “funds only for completing the offer” draft); (2) **after the founding year**, the owner will invest in **acquiring a ~200,000-user audience**; and (3) each **founding business gets a free additional year of marketing** to that audience as part of the offer. Points 2–3 are forward commitments — counsel to frame the 200k figure as a **goal, not a guaranteed reachable-audience count**, and to add the **free marketing year** as a delivery obligation in the value stack / delivery guarantee (confirm-point 6).

Variant A — statement of current intent (softer): > “Founding contributions are a non-refundable purchase of advertising and membership — not funds held in trust. > Once the founding offer is filled, we may allocate these funds at our discretion. As part of this offer, we > intend — after the founding year is complete — to invest in growing the

platform's audience toward a > 200,000-member base, and to give each founding business an additional year of marketing access to that > audience at no extra charge. These statements describe our plans and the value we intend to deliver; they are > not a guarantee of any specific audience size, reach, result, revenue, or financial return."

Variant B — commitment/covenant (stronger; only if counsel advises it can be honored and evidenced): >

"Founding contributions are non-refundable and, once the offer is filled, are ours to allocate as we > determine. As part of the founding offer, we commit to provide each founding business a free additional year > of marketing access to the platform's user audience following the founding year, and we intend to grow that > audience toward a 200,000-member target. We will maintain records of this investment. This is a commitment to > deliver the additional marketing year described; the 200,000-member figure is a goal, not a guaranteed count > of reachable users, and nothing here is a promise of sales, revenue, profit, or investment return."

Open questions for counsel: the non-refundable "owner's discretion after fill" posture vs. the funds model and any refund/escrow language it reverses; framing the 200,000-user figure as a goal (not a guaranteed reachable audience); and whether the free additional marketing year needs its own delivery-guarantee wording and a line in the value stack. It must not read as a promise of a return.